

25STCV26532 25STCV26532

County: los-angeles

Division: Civil Law and Motion

Department: 224

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Case Number: 25STCV26532 Hearing Date: July 14, 2026 Dept: 224

Westlake vs. JV Auto Wholesales LLC, et al.,

TENTATIVE RULING

The motions to compel are GRANTED in PART and DENIED in Part. The Court Orders Further Responses to RFP Nos. 3, 4 in each set of discovery. All other requests are DENIED. Sanctions are DENIED. Further verified responses and documents are due within 30 days of this Order.

ANALYSIS

On March 26, 2026, Plaintiff Westlake Services LLC filed the instant Motions to 1) Compel Defendant Jesus Viera to provide Further Responses to Plaintiff's First Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things and Request for Monetary Sanctions in the Amount of \$4,873.82 (CRS # 2212); and 2) Compel JV Auto Wholesales LLC to provide Further Responses to Plaintiff's First Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things and Request for Monetary Sanctions in the Amount of \$4,873.82 (CRS # 3336)

Defendants filed joint oppositions.

On July 1, 2026, Plaintiff replied.

Legal Standard

Code of Civil Procedure Section CCP § 2031.280(a) provides, "Any documents or category of documents produced in response to a demand for inspection, copying, testing, or sampling shall be identified with the specific request number to which the documents respond."

Moreover, CCP 2031.310 states that: "(a) On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive..."

Discussion

Further Responses are warranted as to these requests for Production of Documents, as the statements of compliance are evasive and incomplete:

Motions to Compel Defendant Jesus Viera to provide Further Responses to Plaintiff's First Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things:

Further Responses to RFP Nos. 3, 4 are warranted. All others are DENIED.

RFP No. 3 seeks documents related to any payments Defendant has made which are in the custody, possession, or control of Defendant. He has control of his bank accounts, canceled checks, etc. and must search those to produce responsive documents.

RFP No. 4 seeks relevant documents and Defendants responses are evasive. He states that that "if such documents exist, they are no longer in his possession, custody, or control." He must state whether the documents ever existed, and if they did, why they are no longer in his possession, custody or control.

Motion to Compel JV Auto Wholesales LLC to provide Further Responses to Plaintiff's First Demand for Identification, Production, Inspection and Copying of Documents and Other Tangible Things.

Further Responses to RFP Nos. 3, 4 are warranted. All others are DENIED.

Because the Court grants some aspects of the motions and Denies others, the Court does not find that Defendants acted without substantial justification and declines to award sanctions.

Further responses are due within 30 days.

CONCLUSION

The motions to compel are GRANTED in PART and DENIED in Part. The Court Orders Further Responses to RFP Nos. 3, 4 in each set of discovery. All other requests are DENIED. Sanctions are DENIED. Further verified responses and documents are due within 30 days of this Order.

Moving Party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.